

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAIRO ZERMENO,

Petitioner

VS.

CLAUDIA GOYTIA,

Respondent

) Case Number: FPT-26-378919

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD
SUPPORT

TENTATIVE RULING

The parties are ordered to appear at 9:00 AM on 9/10/2026 in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Jairo Zermeno (Father) and Respondent Claudia Goytia (Mother) have one minor child together, Valentino, who is almost 2 years old (DOB 9/25/2024). Father recently moved to San Jose; Mother lives in San Francisco.
- 2) On 5/22/2026, Father filed a petition to establish parental relationship and a request for custody and parenting time orders. The Court has reviewed and considered Mother's declaration filed 8/26/2026 and Father's declarations filed 9/2/2026 and 9/3/2026. Mother states, among other things, that she has been Valentino's primary caretaker throughout his life. She states that Father uses marijuana, leaves edibles in places Valentino can reach, and has an unstable work schedule that requires him to travel internationally. Mother states that since Father moved out of their

1 home to San Jose, she is unable to maintain a place in San Francisco; she wishes to move to Los
2 Angeles, where she has family support. Father states, among other things, that he has been
3 involved in Valentino's life. He states that although the parties discussed moving to Los Angeles,
4 that is no longer the plan. He states that if Mother moves to Los Angeles, he would like Valentino
5 to stay with him in San Jose, where he recently rented a two-bedroom apartment.

- 6 3) The parties attended mediation and did not reach an agreement. At mediation, Father requested
7 joint legal and physical custody on a "2-2-3 parenting schedule" (but what he proposes is a 2-2-5-
8 5 schedule, with Valentino being in Mother's care every Monday and Tuesday, in Father's care
9 every Wednesday and Thursday, and the parties alternating the weekends). Father would like the
10 exchanges to occur at the Redwood City Public Library. At mediation, Mother stated she wishes
11 to move to Los Angeles with Valentino and for Father to have parenting time on alternating
12 weekends, with either Mother flying with Valentino to San Francisco or both parties driving and
13 meeting at a midway point between their homes.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 child is the United States.
- 19 2) **The parties are ordered to appear in person or via Zoom Video at 9am on 9/10/2026 in**
20 **Department 404.**
- 21
22
23
24
25
26
27
28
29